# Case Analysis 3: PGA v. Martin

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PGA Tour, Inc v. Martin (2001) is an incredibly important case in the context of the sports law world because it asks such a simple but vital question of if a golfer who cannot walk on a golf course due to a disability be required to walk it anyway. The answer needed the Supreme Court to decide how far a federal civil rights precedent reaches into the elite athletic world of golf, and who actually gets to say which rules of the game are essential vs customary. The case can be formally identified as PGA Tour, Inc. v. Martin, 532 U.S 661 (2001), which means it appears in Volume 532 of the United States Reports, beginning on page 661. It was officially decided by the United States Supreme Court on May 29th, 2001, and it was on a writ of certiorari to the United States Court of Appeals for the Ninth Circuit. Professional golfer Casey Martin brought the lawsuit and was the plaintiff in the trial court, and at the Supreme Court he appeared as the defendant. The PGA Tour, Inc. is a nonprofit organization that sponsors professional golf tournaments and was the defendant in the trial court. They were the petitioner at the Supreme Court because it was the party that was asking for review of the Ninth Circuit's decision (PGA Tour, Inc. V. Martin, 2001). Justice John Paul Stevens wrote the majority opinion.

At the time of the case, the PGA Tour sponsored professional tournaments on three annual tours which were the PGA Tour, the Nike Tour (later renamed Buy.com Tour), and the Senior PGA Tour. The organization leased and operated the courses for these tournaments which generated roughly $300 million a year in revenue from admissions, concessions, television, and other sponsors, most of which was returned to the players as prize money (PGA Tour, Inc. V. Martin, 2001). A golfer could earn their spot on one of these tours in multiple ways, but most did it through a three-stage qualifying tournament known as the Q-School. Any member of the public could enter by paying a $3,000 fee and by submitting two letters of reference from current tour members. Over 1,000 players generally started at the first stage, with around 168 surviving

to the final stage, and only a smaller fraction of those earning a spot on the PGA tour and the rest going to the Nike Tour (PGA Tour, Inc. V. Martin, 2001). This was considered very impressive because, at the time, there were an estimated 25 million golfers in the country. There were three layers of rules that governed competition and the first was the Rules of Golf, which was written jointly by the United States Golf Association (USGA) and the Royal and Ancient Golf Club of Scotland. These were rules followed by both amateurs and professionals which did not prohibit the use of golf carts but did add an optional condition that a tournament committee may adopt if it wants players to walk. The second layer was the "hard card" which were the Conditions of Competition and Local Rules that applied specifically to the PGA Tour's events. The hard cards for both the PGA Tour and the Nike Tour required players to walk the course during tournaments. Golf carts were allowed on the Senior PGA Tour, in the open qualifying rounds, and in the first two stages of the Q-School. However, since 1997, they had been prohibited in the third stage, which was a change the Tour made to mirror a real tour event as closely as possible (PGA Tour, Inc. V. Martin, 2001). The last layer was the weekly Notices to Competitors which could authorize carts for particular events and in special circumstances.

Casey Martin was a very accomplished golfer, having won 17 Oregon Golf Association junior events before age 15, winning a state high school championship, and playing on the Stanford team that won the 1994 NCAA title. Martin qualified for the Nike Tour in 1998 and 1999, and ultimately based on his 1999 results, was able to get a PGA Tour card for 2000. In 1999 alone he participated in 24 events, made the cut 13 times, and finished in the top 10 six different times (PGA Tour, Inc. V. Martin, 2001). Martin was also born with Klippel-Trenaunay-Weber Syndrome which is a progressive circulatory disorder that prevents blood flow from his right leg back to his heart. This causes severe pain and discomfort in his leg and by the end of his

college career, Martin could no longer walk an eighteen-hole course because it caused pain, fatigue, and carried a real risk of hemorrhaging, blood clots, and fracturing his tibia to the point where it would need to be amputated. Stanford ultimately asked for the Pacific 10 Conference and the NCAA to waive their walking requirements for him, and they both agreed (PGA Tour, Inc. V. Martin, 2001). When Martin went professional, the hard card allowed him to ride a cart through the first two stages of the Q-School and before the third stage, he asked for the same permissions while supporting the requests with detailed medical records. The Tour refused to look at these records and waive the walking rule which led Martin to sue. A preliminary injunction allowed him to use a cart in the final stage of the Q-School and later on the Nike, PGA Tours, and USGA voluntarily granted him the same accommodations at events it sponsored (PGA Tour, Inc. V. Martin, 2001). The trial itself came down to whether a golf cart would change the competition and the Tour called in on some of the most famous golfers of all time, including Arnold Palmer and Jack Nicklaus, who testified that fatigue could matter greatly in the tournament, especially on the final day where pressure is the highest. Neither of these golfers offered an opinion as to whether the cart would give Martin an advantage over those he was competing against. The trial judge credited a physiology expert who estimated that walking a course of about 5 miles burns roughly 500 calories which was spread out over 5 hours with plenty of rest and could be compared to less than a Big Mac. The court also found that even with a cart, Martin still had to walk about a mile and a quarter per round and that he endured much more fatigue than his able-bodied competitors did by walking the whole course. In the words of the judge, to think the cart gave Martin a legitimate competitive advantage was a “gross distortion of reality” (PGA Tour, Inc. V. Martin, 2001).

Martin ultimately sued under the Americans with Disabilities Act of 1990 which governs public accommodations. The general rule in Title III says that no individual may be discriminated against on the basis of disability in the full and equal enjoyment of the goods, services, facilities, or accommodations of any public place by the person who owns, leases, or operates it (Americans with Disabilities Act of 1990). This statute defines discrimination to include a failure to make a reasonable modification to policies or procedures when those modifications are necessary to give people with disabilities access, unless the entity can provide the assistance would change the nature of what is being offered. Private plaintiffs under Title III can seek injunctive relief which is exactly why Martin was asking for an order requiring the Tour to let him ride the cart. Martin's claim was that the Tour's walking rule being applied to him was a failure to make a reasonable modification. The Tour was not disputing that Martin had a disability or that a cart was a reasonable and necessary solution for him (PGA Tour, Inc. V. Martin, 2001). However, their defenses were based on the fact that they are exempt as a private club and that professional golfers are providers of entertainment rather than customers, so they fall outside of Title III. Most importantly, they argued that waiving the walking rule for anyone would fundamentally alter the nature of its tournaments. The Supreme Court essentially asked whether the ADA protects access to professional golf tournaments for a qualified individual entering with a disability and whether the person entering can be denied a cart because of the fundamental change this would have on the tournaments (PGA Tour, Inc. V. Martin, 2001).

The Supreme Court affirmed the Ninth Circuit's judgement with a vote of seven to two, which left the permanent injunction in place, allowing Martin to use a cart in Tour and qualifying events. Justice Stevens wrote for the Court and was joined by Chief Justice Rehnquist, and Justices O'Connor, Kennedy, Souter, Ginsburg, and Breyer. The Judge denied the Tour's motion

for summary judgment, which treated the Tour as a commercial entertainment enterprise rather than a private club. After a trial, the District Court for the District of Oregon entered the permanent injunction and the Ninth Circuit affirmed in 2000 (PGA Tour, Inc. V. Martin, 2001). The Supreme Court took the case party because of a conflict among the circuits since the day after the Ninth Circuit ruled for Martin, the Seventh Circuit ruled against Ford Olinger, who was a disabled golfer who wanted to use a cart to qualify for the U.S. Open. Their reasoning was that removing the walking rule would take stamina out of the qualities the competition was supposed to test for (Olinger vs United States Golf Association, 2000). The majority's reasoning found that Title III applied by plain terms and since golf courses are a place of public accommodation which is where the Tour leases and operates. The Tour's argument that players are providers rather than customers failed because the Court didn't need to decide whether Title III is limited to customers (PGA Tour, Inc. V. Martin, 2001). This is because golfers who pay $3,000 for the chance to compete can definitely be considered customers. A tournament offers the privileges of watching and competing to the public, and having one set of customers in the spectators does not prevent a business from having another set in the players. The Court explained that a modification could alter competition in two ways because it might change an essential aspect of the game where it would be unacceptable even if it was applied to everyone else (such as making the hole extremely far). Another change could be less significant where it gives a disabled player more access or an advantage over others competing. The Court was not persuaded that waiving this walking rule for Martin altered competition since getting the ball from the tee into the hole in as few strokes as possible is the basis of golf, rather than stamina over the course of the match. The Court's most important move was insisting on an individualized inquiry because the trial court found that Martin endured greater fatigue than others did walking, so the purpose of the

walking rule was not compromised by his usage of a golf cart. The Court also rejected the argument that elite competition is categorically exempt because Congress may exempt private clubs or religious organizations, but the same ruling doesn't apply for athletic competitions. Lastly, Congress dismissed this conflict as overstated, since within three years since Martin's request, only two other golfers had sued over the walking rule (PGA Tour, Inc. V. Martin, 2001).

Justice Antonin Scalia dissented with Justice Clarence Thomas joining him. The dissent opens with the charge that the majority's opinion exercised a benevolent compassion the law does not give the Court the power to impose (PGA Tour, Inc. V. Martin, 2001). The Court makes a statutory argument that Title III protects the customers of public accommodations, and a professional golfer competing in a tournament is not one. Scalia described the PGA Tour as a professional sporting event staged for the entertainment of a television audience, whose receipts also pay the costs of the tour which includes prize money. Professional golfers, don't enjoy the entertainment or the course more than baseball players enjoy a game at a baseball stadium. He compared the Q-School to an open tryout for a job which makes the people who enter it applicants seeking to be hired rather than clients purchasing a service (PGA Tour, Inc. V. Martin, 2001). The majority said that Tour golfers are not employees or bound by the obligations of employments, so they play at their own pleasure meaning the record does not support treating the Q-School as a hiring process. The second argument is that Scalia contended the Court had no principled way to decide which rules of a game are successful because sports are the sum of arbitrary rules, where nobody including a court can label one of those rules nonessential if the rule maker deems it essential (PGA Tour, Inc. V. Martin, 2001). Scalia asked why the PGA Tour couldn't promote its own game with distinctive rules, such as the American League promotes baseball with a designated hitter. He also notes that the ADA guarantees a disabled person equal

access to competitive sports, not an equal chance to win them. Scalia didn't say that the Tour should have refused Martin's request, but he called that a different question from the one that the Court was answering. He also drew a lesson for sports organizations which is that they should write identical rules for all levels of play and never voluntarily grant a modification, so that the grant cannot be used against them later (PGA Tour, Inc. V. Martin, 2001).

I agree with the Court's holding, and I think the strongest reason is that the majority didn't decide that carts are good for golf or that sports organizations must bend to every request. It decided that when a person with a disability asks for a modification, the organization must look at the person, the purpose of the rule, and ask whether those two are really conflicting with each other. Title III lists golf courses by name as places of public accommodation and prohibits discrimination in the full and equal enjoyment of the privileges they offer. The Tour leased and operated these courses, and entering the Q-School was a privilege sold to anyone willing to pay for it. I find it persuasive that the Court didn't just announce that walking isn't important but rather looked at how the Tour behaved through finding that carts are allowed on the Senior Tour, opening rounds, and the first two stages of the Q-School. They looked at the physiology and Martin to found out that even in a cart he would still be just as fatigued or more than his competitors. However, I do agree that elite competition depends on everyone playing under identical competitions, which was taken very seriously in Olinger vs United States Golf Association, 2000. Golf has also never guaranteed identical conditions since weather changes the course for different players at different times and the Court's point was not that fairness is irrelevant but that the walking rule is a poor proxy for fairness when its stated purpose is not being served. Scalia's dissent is well-written, but the ADA itself directs courts to ask whether a modification would fundamentally alter what a public accommodation offers. If every rule was

essentially whenever the rule maker insists on it, the word fundamentally would have no real impact. The dissents distinction between access and the chance to win also does not apply here since the trial evidence showed that Martin didn't gain a better chance to win from the cart, but rather the chance to even play (PGA Tour, Inc. V. Martin, 2001).

Ultimately, PGA Tour v. Martin stands for the statute that the ADA is not prevented by elite sports from their duty to consider reasonable modifications. The Court was very careful to preserve space for organizations to protect what is truly essential about their competitions. The individualized evaluation it required protects both the athletes and the integrity of the game. The dissent offers a valuable warning of the change within high level competition, but I think the majority has a better agreement specifically for this case alone.

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